

Mukul Kumar v. General Manager, U.P.P.C. Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 September 2014 · Writ-C No. 48226 of 2014 · **Writ disposed; EE to hear objector and act under Supply Code.**

HEADNOTE

On a writ for mandamus to install electricity lines and grant a connection, where a neighbour obstructed a pole on his plot boundary, the Allahabad High Court did not grant or refuse the connection. It directed the Executive Engineer, on the Junior Engineer's report, to hear the objector, take any action required under the Electricity Supply Code, 2005 including the Works Licensee Rules, and inform the petitioner within six weeks of production of a certified copy.

FACTUAL SUMMARY

Mukul Kumar filed a writ seeking a mandamus against U.P. Power Corporation Limited for installation of electricity lines and grant of a connection. The licensee's counsel pointed to his representation dated 24 December 2013, which showed that some poles had already been installed, but one pole lying on the plot-boundary of Narendra Babu was being objected to by him. The petition came up before a Division Bench of the Allahabad High Court on 9 September 2014.

HOLDING-UNITS

INTERPLAY · UP-2005

new connection — third-party obstruction to poles

HOLDING

Where a third party obstructs installation of a pole needed for a new connection, the Executive Engineer shall, on the Junior Engineer's report, hear the objector and take appropriate action under the Electricity Supply Code, 2005 including the Works Licensee Rules if orders of another authority are required, and inform the applicant within six weeks of production of a certified copy. The Court did not itself direct that the connection be granted. ¶ 1

FLAG No Supply Code clause numbered; order cites 'Works Licensee Rules' without a rule number.

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ for mandamus to install electricity lines and grant a connection, where a neighbour obstructed a pole on his plot boundary, the Allahabad High Court did not grant or refuse the connection.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO THE CONNECTION OR TO INSTALLATION OF THE DISPUTED POLE

Mandamus was neither granted nor refused on the merits; the Executive Engineer was directed to hear the objector and proceed under the Code. ¶ 1